
Journal

1983 CLC 3246

Court

SINDH HIGH COURT

Date

1983-02-19

Appeal No.

CONSTITUTIONAL PETITION NO. S-107 OF 1981T

Judge

K. A. GHANI

Parties

SANA MUHAMMAD (PETITIONER) VERSUS FAMILY JUDGE, KARACHI AND ANOTHER (RESPONDENTS)

Lawyers

ARSHAD QURESHI FOR APPELLANT. , *»WAHID ABID FOR RESPONDENT NO. 2. ' *.

Statutes

WEST PAKISTAN FAMILY COARTS ACT (XXXV OF 1964 - S. 7 PROVISIONAL CONSTITUTION ORDER (I OF 1981) - ARTICLE 9 WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 7 WEST PAKISTAN FAMILY COARTS ACT (XXXV OF 1964) - S. 5 WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 5 PROVISIONAL CONSTITUTION ORDER (1 OF 1981) - ARTICLE 9

Judgment

Judgment * i The petitioner seeks to challenge the judgment and decree passed by the learned Family Judge at Karachi, on 12-4-1981 in Family Suit No. 2328/1979 dissolving the marriage of the Respondent No. 2 (wife) with the petitioner/ 1. Facts briefly stated for purposes of this case are that the marriage between the petitioner took place on 17-7-1978 at Pak Pattan Sharif. A child was born out of the wedlock on 7-7-1979.

? » * Inter alia, on the plea of cruelty, the respondent No. 2 (wife) who had migrated to Karachi where she permanently started residing with her brother who is employed in Pakistan Customs, on 25-10*1979 filed the above-mentioned suit against the petitioner for dissolution of her marriage. According to her the Hlrd Family Court at Karachi had the jurisdiction to entertain the said suit as she resided within the jurisdiction of Liaquatabad Police Station, Karachi.

The petitioner contested the above suit. In the written statement filed by him and also in an application made by him under rules 5 and 6 of West Pakistan Family Court Rules, he challenged the jurisdiction of the Family Court at Karachi and prayed for return of the plaint to be presented before the proper Court at Pak Pattan. The objection of the petitioner to the jurisdiction of the Court at Karachi was based on his plea that the respondent No. 2 was ordinarily resident of Pak Pattan (Sahiwal) and that neither any cause of action arose within the jurisdiction of the Court at Karachi nor the parties ever resided together at* Karachi.

2. It appears that though initially no issue as to the jurisdiction of the Family Court at Karachi to entertain the suit was framed, however subsequently the learned Court framed an additional issue to that effect.

The issues framed which finally came up for decision before the Court read as follows 4 “(1) Whether the plaintiff was subjected to cruelty at the hands of the defendant ? .

* (2) Whether the Court has jurisdiction to adjudicate upon the matter ? (3) Whether the plaintiff is entitled to the dissolution of her marriage ? 4 (4) What should the decree be ?” A The said suit was transferred to the Court of XXIV Family Judge, who on 26-1-1981 proceeded to record statement of respondent No. 2 (wife) and her witnesses, Since however the Advocate for the petitioner was not present, examination-in-chief of the respondent No. 2 and one of her witnesses namely Syed Nasiruddin were completed and the case was adjourned for cross-examination by petitioner's Advocate to another date. On 9-2-1981 cross-examinations of the respondent No. 2 and her witness above-named were completed, and another witness on her behalf was also examined and cross-examined.

\$ 3. It would be relevant to mention here that on behalf of the petitioner, an application under rules 5 and 6 of West Pakistan Family Courts Rules, was filed on 8-7-1980 before the learned Court, challenging the jurisdiction of the Family Court at Karachi, whereupon an additional issue (subsequently numbered as Issue No. 2 as above-mentioned) as to the jurisdiction of the Court was framed.

* « However after the evidence of the respondent No* 2 and her witness was completed on 9-2-1981, the Advocate for the petitioner on 9-3-1981 moved yet another application under rules 5 and 6 for return of the plaint. This application was dismissed by order passed by the learned Family Court on 12-3-1981 on the ground that an additional issue as to the jurisdiction of the Court had already been framed, that the respondent No. 2 and her witnesses had led their evidence on this issue and that the issue of jurisdiction was to be decided on merit after

recording the evidence of the defendant (petitioner).

The petitioner against the above order filed Appeal No. 49 of 1981 which however was dismissed by VII Additional District Judge for the reason that against the said order no appeal was competent.

According to the petitioner, before he could approach the High court against the order passed by the appellate Court in Appeal No, 49/81, the Family Court *hastened⁹ to pass judgment and decree on 12-4-1981 in the suit, dissolving the marriage of the petitioner with the respondent No. 2.

Perusal of the impugned judgment however shows that the petitioner (defendant) had chosen to remain absent and did not come forward to give evidence on his own behalf on the date of hearing and thus the Court proceeded to decide the suit. The learned Family Court after holding under Issue No. 2, on the material on record, that the respondent No. 2 is permanently residing at Karachi and that she wants to live at Karachi as her life was in danger at Pak Pattan, answered the other issues also in the affirmative and decreed the suit dissolving the marriage between the parties.

3. Against the above judgment and decree passed on 12-4-1981 in Family Suit No. 2328 of 1981, the petitioner has filed this petition under P. CO., 1981.

4. The learned counsel for the petitioner in support of the petition urged the following grounds f (i) That the respondent No. 2 contravened the provisions of section 7 (2) of West Pakistan Family Courts Act inasmuch as she failed to disclose the names of her witnesses and gist of their evidence in the plaint, and for the same reason the Family Court allowed her illegally to lead evidence without any notice to the petitioner and that the Family Court at Karachi had no jurisdiction to entertain the suit and thus the judgment and decree passed by the said* Court are nullity in the eyes of the law.

5. As regards the first point urged by the learned counsel for the petitioner, it would be relevant to reproduce hereinbelow subsection (2) of section 7 of West Pakistan Family Courts to which reference was made by the learned counsel for the petitioner Section 7 (2)-"The plaint shall contain all material facts relating to the dispute and shall contain a Schedule giving the number of witnesses intended to be produced in support of the plaint, the names and addresses of the witnesses and brief summary of the facts to which they would depose : g Provided that the parties may, with the permission of the Court, call any witness at any later stage, if the Court considers such evidence expedient in the interest of justice".

A perusal of above-mentioned provisions of law would show that the Family Court may in appropriate cases grant permission to the parties to call at any later stage any witness if the Court considers that such evidence is expedient in the interest of justice. Though the discretion is required to be exercised judicially and not capriciously or arbitrarily, in the present case I find that the Family Court granted the application moved on behalf of the respondent No. 2 (wife) for permission to call the witnesses named therein, by consent of the other side. A certified copy of the application dated 16-10-1980 with endorsement of no- objection from the other side and order of the Court granting the said application, in view of no-objection given, is on the record as Annexure to the petition. In view of these facts it is not open to the petitioner to contend before this Court In exercise of its Constitutional jurisdiction, that the respondent No. 1 Family Court IJLEGAL allowed the respondent No. 2 to lead the evidence without any notice to the petitioner. Perusal of the impugned judgment further shows that no objection was taken to the examination of the witnesses before the learned Family Court and that the Advocate for the petitioner availed

of the opportunity given to him to cross-examine the said witnesses. No such objection can, therefore, be allowed to be raised for the first time in these proceedings.

6. The learned counsel for the petitioner then argued that the Family Court at Karachi was not competent to entertain the suit for dissolution of marriage filed by the respondent No. 2. It was contended that the respondent No. 2 was a resident of Pak Pattan Sharif at which place she was married to the petitioner. It was further argued that a casual visit to Karachi to file the suit for dissolution of marriage, would not confer jurisdiction upon the Family Court at Karachi. Reliance was placed on the case of Muhammad Aslam v. Mumtaz Begum In the said case order passed under section 9 of the Muslim Family Laws Ordinance, 1961 granting maintenance to the wife, was challenged by the husband on the plea of want of territorial jurisdiction of the Union Council. It was, argued that the wife when filing her application had mentioned her residence at Wah Cantt. falling within territorial limits of another Local Council. After referring to rule 3(c) of West Pakistan Rules framed under Muslim Family Laws Ordinance, 1961, which provided that the Union Council of the Union of Town in which wife is residing at the time of her making the application shall have jurisdiction. Honourable Mr, Justice Muhammad Afzal Zullah (as he then was) proceeded to hold MNo doubt the above?quoted rule confers jurisdiction on that local council where the wife resided at the time of making the application. Residence has not been defined in the rules. However, keeping in view the context, it would mean permanent and/or ordinary and not casual residence”.

The above principle laid down by the learned High Court, it would be seen, does not support the case of the petitioner.

It is not necessary to refer to some other cases referred by the counsel for the petitioner as I find that the learned Family Court on the issue of jurisdiction depending upon the residence of the respondent No. 2 (wife), has given a finding of fact to the effect that she is residing with her brother in permanent service at Karachi. It was further held T:- is admitted fact that the plaintiff is residing since; September, 1979 in Karachi and as per certificate Exh. 7 the brother of the plaintiff with whom the plaintiff is residing is permanently in Karachi in connection with the service. The plaintiff has clearly stated that she wants to live at Karachi as her life is in danger at Pak Paftao. It is clear that after a long litigation when the plaintiff alleged that her life is in danger at Pak Pattan she will naturally live permanently in Karachi\ The above findings of fact are supported by evidence of the respondent No. 2 (Exh. 5), her brother Nasiruddin (Exh. 6) and her father S. Muslim Nizami (Exh. 7).

The petitioner, on the other hand, chose not to step in the witness-box and submit to cross-examination which conduct in view of the principle laid down by the Honourable Supreme Court in the case of Khairun Nisa v., Muhammad Ishaq “would be the strongest possible circumstance going to discredit the truth of his case.

In the circumstances the findings of fact reached by the Family Court, cannot be interfered with merely for the reason that another view could be possible, as the said Court on the evidence on record was competent to give the said decision, and that a mere plea that the finding given was erroneous, would not render the same as without lawful authority. Reference if needed! be made to the authoritative principle laid down in the cases of Zulfikar Khan Awan v. Secretary Industries (1) ; Muhammad Hussain v. Sikandar and others (2) and Mastan Shah v, Syed Dilawar Hussain 7, Lastly it may be observed that the learned counsel had also contended that the Family Court ought to have decided the question of jurisdiction as a preliminary issue. I, however, find that this objection cannot be sustained. These are mere procedural matters which do not affect the jurisdiction of Court or tribunal. No prejudice whatsoever is shown to have been caused to the petitioner affecting the decision of the case on merits, and further finding that the

procedure adopted by the Family Court to decide the issue of jurisdiction! on merit after recording the evidence was fully justified, I have no hesitation! in holding that this objection is without any force and cannot be pressed in service in these Constitutional proceedings. I 8. The upshot of the above discussion is that this petition is dismissed, j The above are the reasons for the short order passed on 18-8-1982 dismissing the petition.

M. v. h. Petition dismissed.

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